



TKH:CMY

U.S. Department of Justice

Civil Division

(202) 514-4336

Catherine.m.yang@usdoj.gov

Washington, DC 20530

May 27, 2026

Via CM/ECF

Jarrett B. Perlow
U.S. Court of Appeals for the Federal Circuit
717 Madison Place NW
Washington, DC 20439

Re: Notice Of Supplemental Authority Under Rule 28(j);
Kroenung v. United States, No. 25-1363

Dear Mr. Perlow:

Pursuant to Federal Rule of Appellate Procedure 28(j), Respondent-Appellee respectfully responds to Plaintiff-Appellant Chris Kroenung's 28(j) letter to the Court, ECF No. 60-1. None of the three authorities identified in Mr. Kroenung's letter pertains to the issues in this appeal.

Mr. Kroenung identifies two Department of Defense memoranda regarding service members "unjustly discharged" due to "vaccine refusal." ECF Nos. 60-2, 60-3. Mr. Kroenung was a civilian employee, and his removal was not due to vaccine refusal. As our brief explained, Mr. Kroenung was removed for refusing to comply with the agency's *testing* policy, which was distinct from the vaccine mandate. ECF No. 32 at 23.

Mr. Kroenung also identifies an Office of Legal Counsel memorandum dated September 26, 2025, opining that the Merit Systems Protection Board has authority to adjudicate constitutional questions. ECF No. 60-4. As Mr. Kroenung admits, this memorandum issued well before his reply brief deadline. In any event, our brief explained that Mr. Kroenung did not present any constitutional questions to the board for adjudication. ECF No. 32 at 15-18.

Respectfully,

/s/ Catherine M. Yang

CATHERINE M. YANG

Trial Attorney

Commercial Litigation Branch